

POLICY OF PRESERVATION OF DOCUMENTS AND ARCHIVAL

LEGAL FRAMEWORK

This policy is primarily framed based on Regulation 9 of the Securities and Exchange Board of India (Listing Obligations and Disclosure Requirements) Regulations, 2015 (hereinafter referred to as "Listing Regulations") and the Companies Act, 2013. Archival Policy as referred to in Regulation 30 (8) of the Listing Regulations forms part of this Policy. This policy is intended to ensure compliance particularly with the Listing Regulations and the applicable provisions of Companies Act, 2013.

PURPOSE

Regulation 9 of the Listing Regulations mandates that a listed entity shall have a policy for preservation of documents, approved by its board of directors, classifying them in at least two categories as follows:

- a. Documents whose preservation shall be permanent in nature;
- b. Documents with a preservation period of not less than eight years after completion of the relevant transactions.

Provided that the Company may keep documents specified in clauses (a) and (b) in electronic mode.

Further Regulation 30 (8) of the Listing Regulations also refers to an archival policy as per which all events or information which has been disclosed to stock exchange(s) under regulation 30 shall be hosted on the website of the Company for a minimum period of five years and thereafter as per the archival policy of the company, as disclosed on its website.

Besides the above, as per applicable provisions of Companies Act, 2013 certain documents must be preserved permanently or up to a certain prescribed time. Accordingly this policy has been framed keeping Regulations and the provisions of Companies Act, 2013.

DEFINITION

"Archival" means accumulation/storage of historical records on server/network or at a physical place.

"Company" shall mean **AVATAR Industries Limited** (*formerly known as ASL Industries Limited*).

"Documents" or "Records" means a piece of written, printed, or electronic matter that provides information or evidence or that serves as an official record of the Company.

AVATAR Industries Limited

(Formerly known as ASL Industries Limited)

CIN: L62099MH1992PLC464238

Reg. Off: NESCO IT Park, 10th Floor Building 4, Goregaon East, Mumbai, Maharashtra, India,
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"Electronic form" with reference to information means, any information generated, sent, received or stored in media, magnetic, optical, computer memory, micro film, computer generated microfiche or similar device.

"Preservation" or "preserve" means maintenance of documents and records (whether physical or electronic) in usable form and in good order, to prevent from being damaged or destroyed or tampered with.

"Policy" shall mean the Policy on Preservation & Archival of documents and records.

All other words and expressions used but not defined in this policy but defined in the Act, the SEBI Act, 1992, the Securities Contracts (Regulation) Act, 1956, the Depositories Act, 1996 and/ or the rules and regulations made thereunder shall have the same meaning as respectively assigned to them in such acts or rules or regulations or any statutory modification or reenactment thereto, as the case may be.

PRESERVATION OF DOCUMENTS

Preservation of Documents with specific reference to the Companies Act, 2013 and SEBI (Listing Obligations and Disclosure Requirements) Regulations, 2015.

1. Documents whose preservation shall be permanent in nature:

All those documents which are required to be preserved permanently in accordance with the provisions of Companies Act, 2013 and the Rules made there under, the Secretarial Standards, the Listing Agreement and the SEBI Regulations and any all other applicable law, rules, regulations, internal policies of the Company, in force. Details of documents whose preservation shall be permanent in nature is listed in **Annexure-A**.

2. Documents with preservation period of not less than eight years after completion of the relevant transactions:

All those documents which are required to be preserved in accordance with the provisions of Companies Act, 2013 and the Rules made there under, the Secretarial Standards, the Listing Agreement and the SEBI Regulations and any all other applicable law, rules, regulations, internal policies of the Company, in force for a period of not less than eight years after completion of the relevant transactions shall be preserved accordingly. Details of documents with preservation period of not less than eight years after completion of the relevant transactions is listed in **Annexure-B**.

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Records/documents may be preserved either physically or in electronic form.

In line with the Company's Policy on Determination of Materiality of Events and as per the Regulations, the Company shall disclose all material events to the Stock Exchanges and ensure that such events or information as disclosed to the Stock Exchange/s shall be made available on the Company's website for a period of 5 (five) years.

ARCHIVAL OF DOCUMENTS

- The document and records which are no longer current, but which are required to be preserved for a specified period of time or permanently under the applicable laws/ rules/ regulations shall be archived by the Company.
- Every Function/Unit shall identify the documents and records required to be maintained and preserved and shall be responsible for archiving the same as per this Policy.
- Every Function/Unit shall follow the established procedure of archiving of documents and records and ensure ease of retrieval of such documents and records.
- The documents and records may be archived in physical and/or electronic mode. All documents must have appropriate security and safety measures and backup of all documents shall be kept in good condition. The said records should be also maintained in such a manner that their retrieval is easy and quick.
- Documents made available on the website of the Company

After the expiry of time mentioned as above (i.e. five financial years preceding the current financial year), the information and/or document may be removed from the main website.

The Backup of said information and/or document which is removed from the main website shall be maintained/ preserved in the server for a minimum period of 3 years and after expiry of this period of 3 years the backup may be permanently removed from the server.

DISPOSAL OF REGISTERS / DOCUMENTS

The registers/documents mentioned above may be destroyed in accordance with the provisions contained in the Companies Act, 2013 and the SEBI Laws after approval of the Board and in the presence of officer authorized by the Board.

The Company shall maintain a Register of Records and Documents destroyed, containing the particulars of the documents destroyed, the year to which it pertains, mode of destruction etc., each entry in this register shall be verified by any of the Director.

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POLICY REVIEW

The Policy shall be subject to review by the Board. Any amendment made to the policy as deemed necessary from time to time in accordance with the regulatory requirements / amendments or otherwise, shall be reported to the Board for noting at a meeting of the Board.

ANNEXURE-A

Documents / Record whose preservation shall be permanent in nature:

1. Incorporation documents and information as originally filed with ROC.
2. Memorandum of Association and Articles of Association, as amended from time to time-
3. Common Seal, Certificate of Incorporation, Certificate for Commencement of Business and Certificate of Change of Name, if any.
4. Agreements made by the Company with the Stock Exchanges, Registrar and Depositories, etc.
5. Minutes Books of General Meetings, Board and Committee Meetings as per Companies Act, 2013 and SEBI Regulations.
6. Cancelled Share certificates.
7. Licenses and permissions.
8. Order from Courts and any other regulatory authorities.
9. Statutory Registers required to be maintained under various applicable laws.
10. Policies of the Company framed under the Companies Act, 2013 and various regulations from time to time.
11. Files relating to premises for instance Title Deeds/Lease Deeds of owned premises/land and building, etc. and related Ledger / Register.
12. Any other documents as may be required to be maintained in terms of applicable law(s) and preserved from time to time.

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ANNEXURE-B

Documents / Record to be preserved for a minimum period of eight years.

1. Attendance Register - Board and Committee Meetings.
2. Resolutions passed by circulation.
3. Registers of deposits, Register of debenture holders or any other from the date of redemption of debentures or securities).
4. Notice and Agenda of the Board and Committee Meetings.
5. Notices pertaining to disclosure of Interest by the Directors.
6. Annual Returns.
7. Disclosures prescribed under SEBI (LODR) Regulations, SEBI (PIT) Regulations.
8. Office copies of General Meeting / Postal Ballot forms Notices, Scrutinizer's report and related papers.
9. Correspondence with shareholders.
10. Newspaper cuttings of notices of Board Meeting and Financial Results.
11. Books of Accounts, Ledgers & Vouchers.
12. Instrument creating a charge or modification of charge, from the date of satisfaction of charge as per Companies Act, 2013.
13. Documents, Challans & papers related to tax filing.

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